

25STCV01545 25STCV01545

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV01545 Hearing Date: August 13, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

AMHARA ASSOCIATION
OF LOS ANGELES,

Plaintiff,

vs.

WONFEL AID INC ET AL, et al.,

Defendants.

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CASE NO.: 25STCV01545

[TENTATIVE] ORDER GRANTING IN PART MOTION
TO COMPEL FURTHER RESPONSES; GRANTING MOTION FOR LEAVE TO AMEND CROSS-COMPLAINT

Dept. 506

8:30 a.m.

August 13, 2026

MOTION
TO COMPEL FURTHER RESPONSES TO INTERROGATORIES

On
December 22, 2025, Defendants filed a motion to compel Plaintiff's further responses
to interrogatories.

A
party may move to compel a further response to interrogatories if the demanding
party deems an answer to be evasive or incomplete, if an exercise of the option
to produce documents is unwarranted or inadequate, or if objection is without merit
or too general. (Code Civ. Proc., § 2030.300,
subd. (a).)

Defendants
argue that "Plaintiff's response is not Code-compliant because it contains objections
that have been waived" and many answers are "evasive" because Plaintiff "improperly
refers to other answers to interrogatories."

Despite

including objections, Plaintiff also includes substantive responses to each interrogatory. When answering interrogatories with references

to other interrogatories, Plaintiff clearly states, for example, "All defendants

and any individuals detailed in Plaintiffs answers to Interrogatories nos. 6, 7,

and 8," or "Plaintiff incorporates by reference its response to no. 6, 16." However, "the term 'IDENTIFY' with respect to PERSONS means to state the name, address, and telephone number of each PERSON,"

and Plaintiff's responses include only names.

The

motion is GRANTED IN PART.

Plaintiff

is ORDERED to provide supplemental responses including "the name, address, and telephone number of each PERSON" it is asked to "IDENTIFY."

The

motion is otherwise DENIED.

MOTION

TO AMEND

On

April 10, 2026, Defendants/Cross-Complainants filed a motion for leave to file a second amended cross-complaint ("SACC").

The

Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. (Code Civ. Proc., § 473,

subd. (a)(1).) A motion to amend a pleading

must include a copy of the proposed amendment or amended pleading which must be

serially numbered to differentiate it from previous pleadings or amendments and

must state what allegations in the previous pleading are proposed to be deleted

or added, if any, and where, by page, paragraph, and line number, the allegations

are located. (California Rules of Court,

rule 3.1324(a).) The motion shall also be

accompanied by a declaration attesting to the effect of the amendment, why the amendment

is necessary and proper, when the facts giving rise to the amended allegations were

discovered, and why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).)

Cross-Complainants

provide a copy of the Proposed SACC and a redlined copy that shows all amendments. (Stover Decl., Exs. A-B.) The amendments (1) add a second cause of action

for conversion; (2) drop Wonfel Aid, Inc. as a Cross-Complainant; (3) remove allegations regarding Cross-Defendant Aaron Abera, "ROE 1"; (4) include additional allegations regarding Cross-Defendants Benyam Kitaw's and Anegu Ademe's participation and involvement in creating a rogue organization; and (5) make minor stylistic changes and correct typos. (Stover Decl. ¶ 5.) These amendments are the result of the parties' meet-and-confer efforts. (See Stover Decl.

¶¶ 7-11.) Counsel for Cross-Defendant Kitaw

was willing to stipulate to the filing of the SACC, but Cross-Defendant Ademe (then self-represented) refused to stipulate. (Stover Decl. ¶ 14.)

Cross-Defendant

Ademe, now represented by counsel, argues that Cross-Complainants lack standing to recover corporate property and theories of liability under the Corporations Code do not support claims against her. (Opposition at pp. 3-7.) However, the Court does not ordinarily consider the validity of the proposed amended pleading when determining whether to grant leave to amend. (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) Trial has not yet been set, and there is no showing of prejudice.

Accordingly,

the motion to amend is GRANTED. Cross-Complainants are ordered to file the SACC within five days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 13th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court